

WEBINAR TOPIC

JURISDICTION OF FAMILY COURT & DIVORCE

By

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JURISDICTION OF FAMILY COURT & DIVORCE

Introduction:

In Ancient times, the concept of divorce was not known to anyone. They considered marriage as a sacred concept. According to Manu, the husband and wife cannot be separated from each other, their martial tie cannot be broken. Later the concept of divorce came in the picture and established as a custom to put the marriage to an end.

According to the Arthashastra, marriage can end if dissolved by mutual consent and should be unapproved marriage. But Manu does not believe in the concept of the dissolution. According to Manu the only way to end the marriage is the death of one of the spouses.

The provision related to the concept of divorce was introduced by the Hindu Marriage Act, 1955. The Hindu Marriage Act defines divorce as a dissolution of the marriage. For the interest of the society, the marriage or the marital relationship needs to be surrounded by every safeguard for the cause specified by law. Divorce is permitted only for a grave reason.

The Family Courts Act 1984 was enacted on 14 September 1984 to provide for establishment of the family courts with a view to promoting conciliation in and secure speedy settlement of disputes relating to marriage and family affairs.

The main object of the Family Courts is to settle matrimonial disputes speedily by adopting simplified procedure. All matrimonial disputes enumerated in the explanation to Section 7 (1) of the Act and also cases relating to Section 125 of Criminal Procedure Code are tried in the Family Court. This act is aimed at providing speedy and effective settlement of all types of matrimonial disputes under one roof, to all sections of people irrespective of caste, creed or religion.

The matters which are dealt in the Family Courts in India are matrimonial reliefs which includes:

- (i). Nullity of marriage,
- (ii). Restitution of conjugal rights
- (iii). Dissolution of marriage,
- (iv). Judicial separation,
- (v). Declaration as to the validity of marriage,
- (vi). Declaration of matrimonial status of any person
- (vii). Disputes regarding Property of either of the spouses or joint property,

These disputes normally arise where a decree of divorce is passed. This has nothing to do with the general partition of property between the members of a joint family.

- (viii). For injunction arising out of marital relations,
- (ix). Declaration as to the legitimacy of any person,
- (x). For maintenance,
- (xi). Guardianship of a person or custody of any minor.

The Family Court can receive any document or statement even if it is not admissible under Indian Evidence Act 1872.

It is the duty of the family court to resolve the matter through conciliation and settlement.

Provisions of the Code of Civil Procedure, 1908 are applied for the enforcement of the order of the Family Court.

The appeal from family courts lies directly to the Hon'ble High Court within 30 days of passing the order or the judgment. Such an appeal can be on both question of law and question of fact. No appeal lies against an order which is passed with the consent of the parties.

Counseling and conciliation are the two pillars on which the whole structure of family courts is built.

Territorial Jurisdiction:

Section 19 of the Hindu Marriage Act, 1955 (HMA) deals with territorial jurisdiction of Petitions filed under the Act.

Court to which petition shall be presented: Sec. 19 of HM Act.

Every petition under this Act shall be presented to the district Court within the local limits of whose ordinary original civil jurisdiction –

- (i) the marriage was solemnized, or
- (ii) the respondent, at the time of the presentation of the petition, resides, or
- (iii) the parties to the marriage last resided together, or
- (iii-a) in case the wife is the petitioner, where she is residing on the date of presentation of the petition, or
- (iv) the petitioner is residing at the time of the presentation of the petition, in a case where the respondent is, at that time, residing outside the territories to which this Act extends, or has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of him if he were alive.

Section 19 of Hindu Marriage Act is quite a liberal provision. It enables both the parties to have convenience for contesting the matrimonial petition.

Now, **District Court** as provided in above provision means Family Courts. They were established under The Family Courts Act, 1984 with a view to promote conciliation in, and secure speedy settlement of, disputes relating to marriage and family affairs.

Section 19 provides 5 options. It enables the parties to file the Divorce Petitions under any one of them as per their convenience.

Clause (i) of Section 19 gives the option of filing the Petition where the marriage was solemnized.

Clause (ii) of Section 19 states that the Petition is to be presented where the **Respondent** resides.

In a Contested Divorce, whosoever (Husband or Wife) files the Petition is the **Petitioner** and the other becomes the **Respondent**. So if a Husband (Petitioner) files a Divorce Petition, then he would be required to file it before a Court where the Wife (Respondent) resides.

Clause (iii) of Section 19 provides states that a Petition can be filed where both the Husband and Wife **last resided together**.

What does Resides and Last Resided Together mean

It is also important to consider the meaning of **resides** for the purpose of territorial jurisdiction. Indian Courts have time and again ruled that to entertain a Divorce Petition, the residence needs to be a permanent one. Casual visits made by a party to a place cannot be regarded as permanent or even temporary residence. The occasional stay in the premises jointly for a day or for a temporary period cannot satisfy the requirement of the residence.

The correct legal meaning of **last resided together** too would have to be considered. There must be intention of both the parties to reside together at particular place for some length of time, even though the actual time spent over there might be short. So a couple may go for a honeymoon to a different state and stay there for few weeks or even a

month, but that would not come under the definition of last resided together.

Advantage to the Wife

There is an advantage given to a Wife if she institutes a Divorce Petition. In case, the Petition is to be filed by the Wife, then Clause (ii) of Section 19 would not be applicable to her. Clause (iii-a) of Section 19 states that in case the Petitioner is the wife, she can file the Petition where she is presently residing.

Clause (iv) of Section 19 provides an option to a Husband or Wife to file a Petition against the other in case the other spouse is either beyond the jurisdiction of Indian Courts or has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of him, if he were alive, i.e., his relatives and friends. This provision is important to safeguard the liberty of a spouse who has been deserted, under the conditions mentioned above, by the other and wants to break-free from the legal bondage of marriage.

Amicus Curiae refers to someone, not a party to a case, who volunteers to offer information on a point of law, or some other aspect of the case to assist the court in deciding a matter before it.

Sec. 13 of the Family Court Act, 1984:

Not with standing anything contained in any law, no party to a suit or proceeding before a Family Court shall be entitled, as of right to be represented by a legal practitioner ;

Provided that if the Family Court considers it necessary in the interest of justice, it may seek the assistance of a legal expert as amicus curiae.

The court an application by either of the parties, may permit engagement of legal practitioners. In case the Family Court considers it

necessary it may seek the assistance of a legal expert as “Amicus Curiae”.

Divorce under Hindu Marriage Act, 1955

The Hindu Marriage Act, 1955 provides for 2 ways to obtain divorce from the spouse.

1. Contested divorce under section 13 of the act.
2. Mutual consent Divorce under section 13-B of the act.

Section 5 lays down the conditions for a valid marriage under the Hindu marriage act, 1955. They are

- (i) neither party has a spouse living at the time of the marriage;
- (ii) at the time of the marriage, neither party;-
 - (a) is incapable of giving a valid consent to it in consequence of un-soundness of mind; or
 - (b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and for procreation of children; or
 - (c) has been subject to recurrent attacks insanity
- (iii) the bridegroom has completed the age of (twenty one years w.e.f. 1-10-1976) and the bride the age of (eighteen years w.e.f. 1-10-1978) at the time of marriage;
- (iv) Omitted by Act 2 of 1978
- (v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two;

Section 13 of the act provides for grounds under which a spouse can file for contested divorce in India.

If a person wishes to Divorce his/her spouse, his/her case needs to fall under any one of these grounds.

Incompatibility between the couple and/or irretrievable breakdown of the marriage is not yet a valid ground for filing a contested divorce as per the Hindu marriage act in India.

At the initial stage of the case, the court will try to dissolve the dispute between the parties, and will also direct both the parties to appear before a mediator for an amicable solution to their marital issues.

In case, the mediation sessions are not fruitful and issue between the parties are not resolved, the court would continue further with the divorce proceedings.

If an application for maintenance is filed (usually) by the wife, the court would first decide the application so as to ensure financial security of the wife during the pendency of the divorce petition.

Subsequently, the court would proceed towards framing of issues and recording of evidence. After the evidence of both the parties has been recorded, the divorce lawyers for both the parties would be required to address their final closing arguments before the court. Subsequent to which, the court would fix a date on which it shall pronounce its decision.

In case, the decision passed by the court is not acceptable to either of the parties, the party can file an appeal against order within a period of (03) months from the date of order.

In the Hindu Marriage Act, there are some provisions given regarding a valid divorce, i.e., when the spouse can get divorce or appeal for dissolution of marriage in the court of law. For the interest of the society, the marriage or the marital relationship needs to be surrounded by every safeguard for the cause specified by law. Divorce is permitted only for a grave reason otherwise given other alternative.

The Hindu Marriage Act is based on the fault theory in which any one of the aggrieved spouses (Section 13(1)) can approach the court of

law and seek the remedy of divorce. Section 13(2) provides the grounds on which only the wife can approach the court of law and seek the remedy of divorce.

Grounds of Divorce as per the Hindu Marriage Act

Adultery, Cruelty, Desertion, Conversion, Unsoundness of mind, Schizophrenia, Leprosy, Venereal disease, renunciation, entering new religious order, Presumption of death, non compliance with a decree of Judicial separation, non compliance with a decree of Restitution Conjugal Rights.

Adultery

The concept of Adultery may not be considered as an offence in many countries. But as per the Hindu Marriage Act, in the matrimonial offence, the adultery is considered as one of the most important ground for seeking divorce. Adultery means the consensual and voluntary intercourse between a married person with another person, married or unmarried, of the opposite sex. During the period of marriage, if either spouse maintains sexual relation with a person other than his or her lawful wedded companion. Even the intercourse between the husband and his second wife i.e. if their marriage is considered under bigamy, the person is liable for the Adultery.

The concept of Adultery was inserted as a ground for divorce under the Hindu Marriage Act by the Marriage Laws Amendment Act, 1976.

In Swapna Ghose v. Sadanand Ghose

In this case, the wife found her husband with other girl lying on the same bed and the neighbour also confirmed that the husband has committed an offence. Here the wife gets the divorce.

In Sachindranath Chatterjee vs Smt. Nilima Chatterjee

In this case, the petitioner and the respondent were married. After marriage, the husband leaves the wife in his home town so that she can complete her studies and go to another city for work. He visited twice or thrice a month to meet her. Later he found that his wife commits the adultery i.e. to involve in sexual intercourse with his own nephew, watchman etc. The petitioner approaches the court to demand divorce on the ground of adultery and his petition was accepted and their marriage gets dissolved.

Essentials of Adultery

1. One of the spouses involved in the intercourse with another person, married or unmarried, of the opposite sex.
2. Intercourse should be voluntary and consensual.
3. At the time of the act, the marriage was subsisting.
4. There must be sufficient circumstantial evidence to prove the liability of other spouse.

Cruelty

The concept of cruelty includes mental as well as physical cruelty. The physical cruelty means when one spouse beats or causes any bodily injury to the other spouse. But the concept of mental cruelty was added as the spouse can also be mentally tortured by the other spouse. Mental Cruelty is lack of kindness which adversely affects the health of the person. Well it is easy to determine the nature of physical cruelty but difficult to say about mental cruelty.

What is considered as Mental Cruelty against Husband by wife:

1. Humiliating the husband in front of his family and friends.
2. Undertaking the termination of pregnancy without husband consent.

3. Making false allegation against him.
4. Denial for Martial Physical Relationship without a valid reason.
5. Wife having affair.
6. Wife living an immoral life.
7. The constant demand for money.
8. Aggressive and uncontrollable behaviour of Wife.
9. Ill-treatment to the husband parents and family.

It is obligatory on the part of the petitioner/wife to prove that the conduct of the respondent/husband would create reasonable apprehension in the mind of the petitioner that it would be harmful and endangerous for her to live with the respondent/husband, then only she is entitled to decree of divorce on the ground of cruelty. To constitute cruelty, the act or omission must be so serious to create reasonable apprehension in the mind of the other spouse that it is unsafe for one spouse to live with the other.

In Balram Prajapati vs Susheela Bai

In this case, the petitioner filed the divorce petition against his wife on the ground of mental cruelty. He proved that his wife behaviour with him and his parents was Aggressive and uncontrollable and many times she filed the false complaint against her husband. The court accepts the petition and grants the divorce on the ground of cruelty.

What considered as Mental Cruelty against wife by Husband

1. False accusation of adultery.
2. The demand for dowry.
3. Impotency of Husband.
4. Force to abort the child.
5. The problem of drunkenness of husband.
6. Husband having affairs.
7. The husband lives an immoral life.

8. Aggressive and uncontrollable behaviour of the husband.

Humiliating the wife in front of family and friends.

AIR 2004 ALL 1 Neelu Kohli Vs. Naveen Kohli.

It is sufficient that if the cruelty is of such type that it becomes impossible for spouses to live together.

AIR 2007 SC 1426 Maya Devi Vs. Jagadish Prasad.

Cruelty need not be physical. If from the conduct of the spouse it is established or an inference can be legitimately drawn that the treatment of the spouse is such that it causes apprehension in the mind of the other spouse, about his or her marital welfare then the conduct amounts to cruelty.

Few isolated incidents of long past can not be cruelty and ground for divorce.

Suman Singh Vs. Sanjay Singh

Few isolated incidents of long past and that too found to have been condoned due to compromising behaviours of the parties cannot constitute an act of cruelty within the meaning of Sec. 13 (1) (ia) of Hindu Marriage Act.

Principles of Resjudicata not applicable to on a subsequent suit U/sec. 13 of Hindu Marriage Act.

Balveer singh Vs. Harjeet Kaur

lodging false case U/s 498-A IPC is cruelty and ground for divorce.

Denial of physical contact to spouse without reason is mental cruelty.

A wife writing to her husband's employer with unfounded allegations about him constituted actionable cruelty under the Hindu Marriage Act. The cruelty is physical as well as mental and if the allegations are made in writing and if they are baseless, it may cause mental pain to other side.

The question of mental cruelty has to be considered in the light of the norms of the marital ties of the particular society, to which the

parties belong, their social values, status, environment in which they live. Cruelty need not be physical. If from the conduct of the spouse it is established or an inference can be legitimately drawn that the treatment of the spouse is such that it causes apprehension in the mind of the other spouse, about his or her mental welfare than this conduct amounts to cruelty. **Maya Devi Vs. Jagdish Prasad, AIR 2007 SC 1426.**

Making false allegations against husband of having illicit relationship and extramarital affairs by wife in her written statement constitute mental cruelty of such nature that husband cannot be reasonably asked to live with wife. Husband is entitled to decree of divorce; **Sadhana Srivastava Vs. Arvind Kumar Srivastava, AIR 2006 ALL 7.**

Intention to be cruel is not an essential element of cruelty as envisaged under section 13 (1) (ia) of the Act. It is sufficient that if the cruelty is of such type that it becomes impossible for spouse to live together; **Neelu Kohli Vs. Naveen Kohli, AIR 2004 ALL 1.**

The leveling of false allegation by one spouse about the other having alleged illicit relations with different persons outside wedlock amounted to mental cruelty; **Jai Dayal Vs. Shakuntala Devi, AIR 2004 Del 39.**

A husband cannot ask his wife that he does not like her company, but she can or should stay with other members of the family in matrimonial home. Such an attitude is cruelty in itself on the part of the husband; **Yudhishter Singh Vs. Sarita, AIR 2002 Raj 382.**

Removal of mangalsutra by wife at the instance of her husband does not amount to mental cruelty; **S.Hanumantha Rao Vs. S.Ramani, AIR 1999 SC 1318.**

The act of cruelty is one of the grounds for dissolving a marriage by decree of divorce which is common to both Hindu Marriage Act and Special marriage Act. The expression in Sec. 13 (1) (ia) of Hindu Marriage Act is identical with the expression found in Sec. 27 (1) (b) of the Special Marriage Act which also deals with the grounds of divorce. Under this act, a petition for divorce may be presented either by the husband or by the wife on the ground that the respondent has since the solemnization of the marriage treated the petitioner with cruelty U/sec. 27 (1) (d) of the Act.

Desertion

Desertion means the permanent abandonment of one spouse by the other spouse without any reasonable justification and without his consent. In general, the rejection of the obligations of marriage by one party.

One of the essential condition for success in a petition for divorce granted on the ground of desertion is that the deserted spouse should have been willing to fulfill his or her part of marital duties. Mere physical separation would not amount to desertion. The animus deserendi i.e., an intention to bring cohabitation permanently to an end should exist.

Essentials

1. Permanent abandonment of the other spouse.
2. Rejection of the obligation of marriage.
3. Without any reasonable justification.
4. Without the consent of another spouse.

Desertion means the desertion of the petitioner by the other party to the marriage without reasonable cause and without the consent or

against the wish of such party and includes willful neglect of the petitioner by the other party to the marriage.

Sec. 13 (1) (ib) of the Hindu Marriage Act requires that a party claiming divorce on the ground of desertion should prove that he/she was ready to cohabit throughout the said period of 2 years prior to filing of the petition for divorce.

Sec. 13(1) (ib) of Hindu Marriage Act 1955 mandates that a spouse seeking divorce on the ground of desertion has to prove that the opposite spouse has withdrawn from his or her society with a clear intention of breaking the marital tie. Two years of prior desertion is a mandate to file such a petition U/sec. 13 (1) (ib) of Hindu Marriage Act. Burden is always upon the spouse taking up the plea of desertion.

In Bipin Chander Jaisinghbhai Shah vs Prabhawati

In this case, the respondent leaves the house with an intention to abandon his wife. Later the wife approaches the court, but the respondent proved that even though he left the house with an intention to desert, but he tried to come back and he was prevented from doing so by the petitioner. Here, the respondent cannot be held liable for desertion.

Conversion

Conversion to another religion by either party other than Hinduism. If one of the spouses converts his religion to any other religion without the consent of the other spouse, then the other spouse can approach the court and seek the remedy of divorce.

Illustration

“A”, a Hindu has a wife “B” and two children. One day “A” went to church and converted to Christianity without the consent of “B”, here “B” can approach the court and seek for divorce on the ground of conversion.

In Suresh Babu vs Leela

In this case, the husband converts himself into Muslim and marries another woman. Here the wife Leela filed a case and demanded the divorce on the ground of conversion without her consent and cruelty.

The law expects that refinement, reconciliation and settlement is to be first attempted, without following such procedure, the Family Court shall not dispose of the suit or proceedings before it either granting the relief or declining the relief on the entitlement or disentitlement on legal grounds. It is not necessary that by mere conversion the marital tie should be broken in a secular country like India where mixed marriage itself is well accepted course, on the mere ground of conversion to another religion of one of the Hindu parties to a marriage during the subsistence of the marriage, the marital tie need not be broken.

Insanity

Insanity means when the person is of unsound mind. Insanity as a ground of divorce has the following two requirements

1. The respondent has been incurably of unsound mind.
2. The respondent has been suffering continuously or intermittently from mental disorder of such a kind and to such an extent that the petitioner cannot reasonably be expected to live with the respondent.

If a spouse of the petitioner suffers from any unsoundness of mind, mental illness or disorder that cannot be cured, then the petitioner can file for divorce.

An analysis of Sec. 13 (1) (iii) of the Act, it consists of two parts. The first part affords a ground to grant a decree of divorce where the spouse has been suffering from incurably of unsound mind and second

party enables the court to grant a decree where either of the spouse has been suffering continuously or intermittently from mental disorder of such a kind of such to an extent that the petitioner can not reasonably be expected to live with the respondent. When the petitioner/husband claiming divorce U/sec. 13 (1) (iii) of the Act, the initial onus of proof is always on him to establish that the respondent/wife is suffering from mental disorder of such a kind and to such an extent that he cannot reasonable be expected to live with the respondent/wife. When the petitioner/husband discharged his initial onus of proof, it will automatically shift on to the respondent/wife to rebut the same. Therefore, the legal burden is on the petitioner/husband to establish the requirement U/sec. 13 (1) (iii) of the Act, otherwise he is not entitled to claim divorce.

In Vinita Saxena vs Pankaj Pandit 2006 (3) SCJ 163

In this case, the petitioner filed a case to get the divorce from the respondent on the ground that the respondent was suffering from Paranoid Schizophrenia which means mental disorder. She came to know this after her marriage. Here, the court grants the divorce on the ground of insanity of husband.

Mere pleading of mental disorder does not suffice the legal requirement but it should also be proved that the disorder is such that the wife can not reasonably be expected to live with the husband.

Mental disorder for relief under section 13 (1) (iii) should be of such a degree that it is impossible to lead normal marital life or it is unreasonable to expect a person to put up with a spouse with such condition; **B.N. Paduranga Shet Vs. S.N. Vijayalaxmi, AIR 2003 Karn 357.**

When a person is claiming divorce under section 13 (1) (iii) of the Hindu Marriage Act, it is for such a person to adduce positive evidence to

substantiate the allegation that he cannot reasonably be expected to live with the respondent. **Lissy Vs. Jaison 2000 (1) KLT 589;**

Leprosy

Leprosy is an infectious disease of the skin, mucous membranes, nervous system etc. this disease is transmitted from one person to another. Thus it is considered as the valid ground for divorce.

In Swarajya Lakshmi vs G. G. Padma Rao

In this case, the husband filed the case for granting the divorce on the ground of leprosy. He claimed that his wife is suffering from incurable leprosy with the expert's reports. Here he succeeds in getting the divorce on the ground of leprosy.

Venereal Disease

Under this concept, if the disease is in communicable form and it can be transmitted to the other spouse, then this can be considered as the valid ground for divorce. Venereal disease as stated in section 13 (v) of the Hindu Marriage Act, 1955 means a communicable infection transmitted by sexual intercourse. HIV positive is also a disease transmitted through sex. In the year 1955, HIV was not heard of and therefore, that was not named in the Act, as one of the grounds.

If a person was found to be suffering from any venereal disease, in a communicable form, it will be open to the other partner in the marriage to seek divorce. The Hindu Marriage Act specifically stated that venereal disease in a communicable form could be a ground for divorce.

Illustration

A and B married on 9 September 2011. Later A suffered from a venereal disease and it is incurable. There's also a chance that B can

also get infected by that disease if she lives with A. Here, B can approach the court for dissolution of marriage.

Renunciation

The renunciation of the word or entered any religious order. It means when one of the spouses decide to renunciate the world and walk on the path of the God, then the other spouse can approach the court and demand the divorce. In this concept the party who renounces the world is considered as civilly dead. It is a typical Hindu practice and considered as a valid ground for divorce.

Illustration

A and B got married and lives a happy life. One day A decides to renunciate the world. Here, B has a right to approach the court and seek the remedy of divorce.

Presumption of Death

In this case, the person is presumed to have died, if the family or the friends of that person does not hear any news about the person alive or dead for seven years. It is considered as the valid ground for divorce, but the burden of proof is on the person who demands the divorce.

Illustration

A was missing from the last seven years and his wife B does not get any news about him of being alive or dead. Here B can approach the court and ask for the divorce.

Section 13 (1-A) has been inserted by Act 44 of 1964. As per this section either party to a marriage, whether solemnized before or after the commencement of this Act, may also present a petition for the dissolution of the marriage by a decree of divorce on the ground :-

(i) that there has been no resumption of cohabitation as between the parties to the marriage for a period of one year or upwards after

the passing of a decree for judicial separation in a proceeding to which they were parties; or

(ii) that there has been no restitution of conjugal rights as between the parties to the marriage for a period of one year or upwards after the passing of a decree for restitution of conjugal rights in a proceeding to which they were parties.

RESTITUTION OF CONJUGAL RIGHTS: Section 9 of H. M. Act 1954

According to the Sec. 9 of the Act, when either the husband or the wife has, without reasonable excuse, withdrawn from the society of the other, the aggrieved party may apply, by petition to the court, for Restitution of Conjugal Rights and the court, on being satisfied of the truth of the statements made in such petition and there is no such legal ground why the application should not be granted, may decree Restitution of Conjugal Rights accordingly. According to explanation to Sec. 9 of the Act, the burden is upon the person who has withdrawn from the society of the other to prove that there is a reasonable excuse for such withdrawal from the conjugal society.

In a decision reported in **Deepa Suyal Vs. Dinesh Chandra Suyal AIR 1993 ALL 244** wherein it was observed that the burden to prove withdrawal from the society of the spouse is on that spouse who withdrawn from the society and refused to discharge his or her marital obligations. If the husband or wife refused to discharge their Matrimonial obligations, they have to lead strong evidence in support of their refusal to discharge their obligations. The refusal to discharge obligations can be said to be reasonable or justified only when it is impossible for one of them to live with the other. Where the question arises whether there has been reasonable excuse for withdrawal from the society, the burden of proving reasonable excuse shall be on the person who has withdrawn from the society.

Divorce by Mutual Consent in India- Step by Step Procedure

Concept of Divorce with Mutual Consent

As per Section 13B, the person can file the petition for divorce by mutual consent of both the parties. If the parties want to dissolve their marriage as a mutual consent are required to wait for one year from date of marriage. They have to show that they are living separately for one or more year and not able to live together.

Under Section 13-B of the Hindu Marriage Act, 1955, the parties can seek **divorce by mutual consent** by filing a petition before the court. Mutual consent means that both the parties agree for peaceful separation.

Mutual Consent Divorce is a simple way of coming out of the marriage and dissolve it legally. Important requirement is the mutual consent of the husband & wife. One important aspect on which *Husband & Wife have to reach to* consensus i.e., alimony or maintenance issues. As per Law there is no minimum or maximum limit of maintenance. It could be any figure or no figure.

The parties intending to dissolve marriage are required to wait for at least one year from the date of marriage.

They have to show that they have been living separately for a period of one year or more before the presentation of the petition for divorce and that during this period of separation they have not been able to live together as husband and wife.

In the family court of the city / district where both the partners lived together for the last time, which was their matrimonial home.

There are different laws of divorce for different religion. Hindus (which includes Sikh, Jain, Budh) are governed by Hindu Marriage

Act, 1955. Christians are governed by Indian Divorce Act-1869 & The Indian Christian Marriage Act, 1872. Muslims are governed by Personal laws of Divorce and also the Dissolution of Marriage Act, 1939 & The Muslim Women (Protection of Rights on Divorce) Act, 1986. Similarly, Parsis are governed by The Parsi Marriage & Divorce Act-1936. And there is also a secular law called Special Marriage Act, 1954.

During the cooling period of 6 months when the petition is pending in the court, any of the partner is fully entitled to withdraw the mutual consent by filing an application before the court stating that he/she does not wish to seek divorce by mutual consent. In such circumstances, the court grants no divorce decree.

There is no option available to the other party in such circumstances except to file a normal petition for divorce under the provisions of the Section 13 of the Hindu Marriage Act, 1955.

In such a situation divorce can be granted only on certain specified grounds like cruelty; desertion; voluntary sexual inter-course with another person; the other spouse being of unsound mind; conversion of religion by the other spouse; Leprosy; venereal disease; a spouse having renounced the world or being missing for a period of more than 7 years.

Remarriage without getting divorce is a punishable offence with seven years imprisonment.

If there is proof of the absence of spouse without any information to the other spouse about his whereabouts for a continuous seven years period, a petition should be filed in this regard in the court.

The divorced persons can remarry depending on the nature of decree, after the expiry of three months from the date of decree if no notice of appeal is received by the person remarrying from the other person.

It takes from six months to one year from the date of filing of the petition. It varies from case to case & place to place.

The Hon'ble Supreme Court can its exercise of its extra ordinary powers Under Article 142 of the constitution, convert a proceeding U/sec. 13 of the H.M. Act 1955 into one U/sec. 13 B and pass a decree for mutual divorce without waiting for the statutory period of six months, none of the other courts can exercise such powers.

AIR 1995 AP 325 = 1998 (2) ALT 166.

The Division Bench held that the trial court has no power to alter the statutory time limit enacted in Sec. 13 B (2) of Hindu Marriage Act 1955. It is well settled that when a statute ordains a particular procedure prescribing a certain time limit, the court is bound to comply with the same.

The period mentioned in Section 13B(2) is not mandatory but directory

The Hon'ble Supreme Court held that minimum period of 6 months stipulated under Section 13B(2) of the Hindu Marriage Act, 1955 for a motion for passing decree of divorce on the basis of mutual consent isn't mandatory & can be waived by the Courts depending on the facts & circumstances of the case.

This judgment was delivered by a Bench of Justice AK Goel & Justice UU Lalit in an appeal against a judgment of the Delhi HC in Civil Appeal No. 11158/2017 (Spl. Live Petition No. 21084/2017) in Amardeep singh Vs Harveen Kaur.

The question which arose for consideration before the top court was if the minimum period of 6 months stipulated under Section 13B(2) of the Hindu Marriage Act, 1955 for passing decree of divorce on the

basis of mutual consent is mandatory or can be relaxed in some exceptional situations.

The Object of the provision is to enable the parties to dissolve marriage by consent, if the marriage has irretrievably broken down.

It held that the cooling-off period prescribed by the relevant provision was to safeguard against a hurried decision & wasn't to perpetuate a purposeless marriage.

Therefore, the Apex Court proceeded to hold that the period mentioned in Section 13B(2) is not mandatory but directory & held the following:

“we're of the view that where the Court dealing with a matter is satisfied that a case is made out to waive the statutory period under Section 13B(2), it can do so after considering the following :-

- i) the statutory period of 6 months specified in Section 13B(2), in addition to the statutory period of 1 year under Section 13B(1) of separation of parties is already over before the 1st motion itself;
- ii) all efforts for mediation or conciliation including efforts in terms of Order XXXIIA Rule 3 CPC/Section 23(2) of the Act/Section 9 of the Family Courts Act to reunite the parties have failed & there's absolutely no likelihood of success in that direction by any further efforts;
- iii) the concerned parties have genuinely settled their differences including alimony, custody of child, any other pending issues between the parties;
- iv) the waiting period'll only prolong their agony.

Hon'ble Supreme Court concluded that since the period mentioned in Section 13B(2) isn't mandatory but directory, it'll be open to the Court to exercise its discretion in the facts & circumstances of each case, where

there's no possibility of parties resuming cohabitation & there're chances of alternative rehabilitation.

No petition for Divorce within one year of Marriage. Sec. 14 of HM Act

As per Section 14 of the Act, no Court will entertain the petition of divorce within the one year of the marriage. But can be entertained if the matter is related to bigamy, and where the consent of the spouse was taken through misrepresentation, fraud, undue influence etc.

Remarriage of Divorced Person: Sec. 15 of HM Act.

As per Section 15 of the Act, after the marriage gets dissolved and no further petition was filed by any of the spouses against the order of the court and the time for appeal has expired and at that time it is assumed that both the spouse are satisfied. Then only the divorced person can marry again.

Conclusion

The Hindu Marriage Act, 1955 provides various provision regarding divorce. The Hindu Marriage Act defines “Divorce as a Dissolution of Marriage”. The main three theories related to divorce are Fault Theory, Mutual Consent Concept, and irretrievable theory. In India, the Fault theory works in the matter of the divorce. Under this theory, marriage can be ended when one of the spouses is responsible or liable for the offence under matrimonial offences. The innocent spouse can seek the remedy of divorce. Under the Hindu Marriage Act, the basic grounds on which the Hindu women can seek the remedy of divorce are Adultery, Desertion, Conversion, Leprosy, Cruelty etc. But many philosophers criticize the concept of Divorce.

The provisions of the Family Courts Act, and amended code of Civil Procedure would clearly show the role of conciliation for

reconciliation/settlement of disputes in family affairs. The primary object is to promote and preserve the sacred union of parties to a marriage. Resolution of the disputes between the parties to a marriage on the grounds available under law should be gone into only after the procedure under the Rules is followed through the counsellors to find out the possibility of reconciliation of the parties to the marriage or settlements of their disputes, however grave be the ground for separation. After the introduction of Family Court Act 1984, the Family court is bound to make endeavours for reconciliation and settlement. The requirement is mandatory. That is the conceptual change brought out by the Family Courts Act, which is a special statute.
